HIGH COURT OF DELHI

JUDICIAL APPELLATE JURISDICTION

CASE NO: W.P. (Crl.) No. 135 of 2008 (YEAR: 2008)

CORAM: S. RAVINDRA BHAT

Avnish Bajaj
... Appellant(s) / Petitioner(s)
Versus
State (NCT of Delhi)
... Respondent(s)

Acts Referred:	Information Technology Act, 2000, Indian Penal Code, 1860
Sections:	Section 67 IT Act, Section 79 IT Act, Section 292 IPC

JUDICIAL HEADNOTE & SUMMARY

Addressed intermediary liability for user-generated content hosted on an e-commerce platform, prompting the subsequent amendment of Section 79 to introduce the safe harbor doctrine.

RATIO DECIDENDI

The Court held that: Addressed intermediary liability for user-generated content hosted on an e-commerce platform, prompting the subsequent amendment of Section 79 to introduce the safe harbor doctrine. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Avnish Bajaj v. State (NCT of Delhi) (W.P. (Crl.) No. 135 of 2008) were adjudicated before the High Court of Delhi. The matter arose out of claims and contentions concerning Information Technology Act, 2000, Indian Penal Code, 1860, particularly Section 67 IT Act, Section 79 IT Act, Section 292 IPC. Addressed intermediary liability for user-generated content hosted on an e-commerce platform, prompting the subsequent amendment of Section 79 to introduce the safe harbor doctrine.

OPERATIVE ORDER

ORDER: Decided